

Background

Plaintiff Midland Funding LLC (“Plaintiff”) filed its Complaint against Defendant on January 28, 2019. Defendant filed an Answer on April 14, 2025 (the “Answer”). A default was entered against Defendant on July 6, 2020 (the "Default").

Thereafter, a request for entry of a default judgment was submitted to the Court and a default judgment was entered on September 4, 2020 (the "Default Judgment").

The Court recently issued an order setting aside the Default and Default Judgment following a motion brought by the Defendant.

Defendant has now filed the present motion.

Analysis

Defendant appears to be seeking to quash the prior attempted service purported done in February 2019. It is not clear to the Court why a motion to quash is necessary at this stage, as the Court’s prior order already determined that such service was invalid. See Order dated September 16, 2025. The Court’s made clear that the next step would be for Plaintiff to complete new service of process. *Id.* at p. 4., ¶16.

Defendant also seeks an order dismissing the case pursuant to Code of Civil Procedure section 583.210. Section 583.210 provides:

The summons and complaint shall be served upon a defendant within three years after the action is commenced against the defendant. For the purpose of this subdivision, an action is commenced at the time the complaint is filed.

Code Civ. Proc. § 583.210(a).

Code of Civil Procedure section 583.250 provides that “[i]f service is not made in an action within the time prescribed in this article: [¶] (2) [t]he action shall be dismissed by the court on its own motion or on motion of any person interested in the action,…” See *id.* at § 583.250(a). This provision is mandatory, except as provided by statute. *Id.* at § 583.250(b).

Code of Civil Procedure section 583.240 sets forth various circumstances that may toll or extend the running of the statutory time period. *Id.* at § 583.240.

Whether any of the circumstances apply here has not been briefed by Plaintiff, as no Opposition has been filed.

It is not clear to the Court that the moving papers have been served, as there is no Proof of Service on file.

Disposition

The Court finds and orders as follows:

1. **PARTIES TO APPEAR** to address service of the pending motion and a continued hearing date.

12. 9:00 AM CASE NUMBER: MSL21-00016
CASE NAME: DISCOVER VS. BISI
***HEARING ON MOTION IN RE: TO VACATE JUDGMENT AND ENTER DISMISSAL**
FILED BY: DISCOVER BANK
TENTATIVE RULING:

Plaintiff and judgment creditor Discover Bank (“Plaintiff”) filed a Motion to Vacate Judgment and Enter Dismissal on October 21, 2025 (the “Motion to Vacate Judgment”). The Motion to Vacate Judgment was set for hearing on January 6, 2026. The motion is unopposed.

Background

Plaintiff filed a Complaint on January 4, 2021. A default was entered on September 7, 2021 (the “Default”) against defendant and judgment debtor Louis Bisi (“Defendant”). Subsequently, a default judgment in the total amount of \$6,121.74 was entered on June 24, 2022 (the “Default Judgment”).

Analysis

The Court has authority to vacate a void default judgment pursuant to Code of Civil Procedure section 473(d). See Code Civ. Proc. § 473(d) (“The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order.”); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

In addition, a judgment may be set aside by a court if it has been established that extrinsic factors have prevented one party to the litigation from presenting their case. *In re Marriage of Park* (1980) 27 Cal.3d 337, 342. The grounds for such equitable relief are commonly stated as being extrinsic fraud or mistake. *Id.* Those terms are given a broad meaning and tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing. *Id.*; see also *Aldabe v. Aldabe* (1962) 209 Cal.App.2d 453, 474 (“Fraud or mistake is extrinsic when it deprives the unsuccessful party of an opportunity to present his case to the court.”) quoting *Westphal v. Westphal* (1942) 20 Cal.2d 393, 397.

Plaintiff’s motion is based on the judgment creditor’s own application and request. See Declaration of Plaintiff’s Counsel filed October 21, 2025, ¶12 *et seq.* Plaintiff requests that the Court vacate the Default Judgment entered and that the case be dismissed without prejudice. *Id.* at ¶13.

The Court construes these representations as an implied concession that there is a defect underlying the judgment such that Plaintiff concedes it is void or voidable and should not

be maintained or enforced or that there exist other extrinsic factors justifying the setting aside of the subject Default Judgment in the interests of justice.

Disposition

The Court finds and orders as follows:

1. The Motion to Vacate Judgment is GRANTED.
2. The Default Judgment is hereby VACATED and SET ASIDE.
3. The case is hereby DISMISSED, WITHOUT PREJUDICE.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.